

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JAYSON PACHECO,

Plaintiff(s),

SUMMONS

-against-

INDEX NO.

P.O. CHRISTOPHER REILLY and
THE CITY OF NEW YORK,

FILED ON:

Defendants(s).

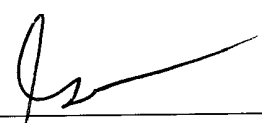
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TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of the occurrence.

DATED: New York, New York
March 13, 2015

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

Defendants' Addresses:

P.O. CHRISTOPHER REILLY
C/O 23RD PRECINCT
164 E 102ND ST
NEW YORK, NY 10029

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JAYSON PACHECO,

Plaintiff(s),

-against-

P.O. CHRISTOPHER REILLY and
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INDEX NO.

**VERIFIED
COMPLAINT**

Plaintiff, by his attorney, GREG GARBER, ESQ. complaining of the above named defendants respectfully alleges upon information and belief as follows:

**AS AND FOR A FIRST CAUSE OF ACTION,
PLAINTIFF, JAYSON PACHECO ALLEGES:**

1. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a domestic municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK owned, operated and controlled a police department known as the New York City Police Department.

3. That at all times hereinafter mentioned, the defendant, P.O. CHRISTOPHER REILLY was employed by the defendant THE CITY OF NEW YORK to work as a police officer in the New York City Police Department.

4. That at all times hereinafter mentioned, the defendant, P.O. CHRISTOPHER REILLY was acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK.

5. Upon information and belief that at all times herein mentioned defendant, P.O. CHRISTOPHER REILLY was a Police Officer for defendant CITY OF NEW YORK attached to the 23rd Precinct in the County, City and State of New York.

6. Upon information and belief that at all times herein mentioned defendant, P.O. CHRISTOPHER REILLY was a Police Officer of THE CITY OF NEW YORK, assigned to the 23rd Precinct in the County, City and State of New York.

7. That defendant, P.O. CHRISTOPHER REILLY was a person who at the time and place herein mentioned, was a police officer employed by the defendant, THE CITY OF NEW YORK in the performance of his duty and authority.

8. Upon information and belief that at all times herein mentioned the defendant, THE CITY OF NEW YORK, its agents, servants, and/or employees trained, managed, supervised, controlled and instructed the aforementioned police officer.

9. That on the 30th day of August, 2014, defendant P.O. CHRISTOPHER REILLY was on duty and was acting within the scope of his authority as a Police Officer for the defendant, THE CITY OF NEW YORK.

10. That on or about the 30th day of August, 2014, plaintiff JAYSON PACHECO went to the 23rd Precinct located at 164 E 102nd Street, in the County of New York and State of New York to report his Yamaha Motorcycle stolen at which time plaintiff was falsely handcuffed and placed under arrest, falsely imprisoned and charged with violations of PL Section 120.20, Reckless Endangerment, without proper warrant or cause.

11. That the plaintiff was falsely arrested and/or imprisoned by the defendant P.O. CHRISTOPHER REILLY by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

12. That on or about the 30th day of August, 2014, this plaintiff was assaulted, unlawfully detained, falsely imprisoned and falsely arrested, due to the negligence, culpable conduct, carelessness and recklessness of the defendant, THE CITY OF NEW YORK in failing to properly hire and train its police officers herein, as a result whereof this plaintiff was caused to sustain serious personal injuries.

13. That on or about the 30th day of August, 2014, due to the willful and malicious conduct of defendants, this plaintiff was caused to sustain serious personal and psychological injuries.

14. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the defendant in failing to properly hire and train its

police officers; in that defendants failed to properly monitor, supervise and control the activities of their police officers and more specifically the police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly touching this plaintiff without consent or justification; in negligently using excessive force; in violating the applicable rules, statutes and ordinances which govern the activities of the defendants, it agents, servants, and/or employees and in otherwise being negligent in the premises.

15. In doing all the acts and things aforesaid defendant, THE CITY OF NEW YORK its agents, servants and/or employees acted negligently in failing to properly hire and train its police officers.

16. That before during and after the aforementioned incident, the plaintiff was injured by the defendant P.O. CHRISTOPHER REILLY by unlawfully and intentionally menacing, and otherwise touching him without justification, excuse or consent.

17. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

18. That by reason of the foregoing, the plaintiff was caused to and sustain severe, painful and serious personal injuries in and about his head, limbs and body; became sick, sore, lame and disabled; was caused to suffer contusions, abrasions, lacerations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, mental anguish, emotional trauma and bodily injuries; was confined to a hospital, bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the plaintiff was greatly injured both bodily and mentally; has been prevented from engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

19. That heretofore, on the 20th day of November, 2014, a verified statement of the plaintiff's claim and notice of intention to sue herein was duly served on THE CITY OF NEW

YORK and said verified statement of this plaintiff's claim and notice of intention to sue were so served within ninety (90) days of the happening of this accident as is provided in the Public Authority Law of New York.

20. That said verified statement of plaintiff's claim included, among other things, the name and post office address of the plaintiff's and their attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.

21. That at least thirty (30) days have elapsed since the verified statement of this plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant THE CITY OF NEW YORK and the defendant has failed to make an adjustment of payment thereof and this action has been commenced within one (1) year and ninety (90) days of the cause of action herein alleged had occurred.

22. That at least thirty (30) days have elapsed since the verified statement of this plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant, THE CITY OF NEW YORK, and defendant has failed to schedule an oral examination or a physical examination of the plaintiff.

23. That at least ninety (90) days have elapsed since the verified statement of this plaintiff's claim and notice of intention to sue herein referred to was served upon the defendant, THE CITY OF NEW YORK, and defendant has failed to schedule an oral examination or a physical examination of the plaintiff and has therefore waived its right to demand an oral examination and/or physical examination pursuant to General Municipal Law §50-h, subsection 2.

24. That the amount of said damages sustained by the plaintiff as a result of the aforesaid serious personal injuries and pecuniary loss are in a substantial sum of money to be determined by the court and jury.

25. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

26. This action falls within one or more of the exceptions set forth in CPLR ss1602.

**AS AND FOR A SECOND CAUSE OF ACTION,
PLAINTIFF JAYSON PACHECO ALLEGES:**

27. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

28. That the defendant, P.O. CHRISTOPHER REILLY acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others, and more particularly the plaintiff herein and did so.

29. That the defendants acted deliberately with knowledge of the plaintiff's rights and with the intent to interfere therewith and deliberately with intent to cause serious harm to the plaintiff herein and did so.

30. In doing all the acts and things aforesaid defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers would have used under similar circumstances.

31. In doing all the acts and things aforesaid defendant, THE CITY OF NEW YORK their agents servants and/or employees acted negligently in failing to properly hire and train its police officers.

32. That by reason of the wanton, reckless and malicious acts by the defendants, the plaintiff is entitled to punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this accident.

**AS AND FOR A THIRD CAUSE OF ACTION
PLAINTIFF JAYSON PACHECO ALLEGES:**

33. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

34. On the 30th day of August, 2014 defendant P.O. CHRISTOPHER REILLY arrested, imprisoned and or confined plaintiff, JAYSON PACHECO, and restrained him of his liberty.

35. This arrest, imprisonment and/or confinement was made without probable cause, warrant or other legal process and was unlawful, in that no crime had been committed and in that there was no reason or probable cause for belief that plaintiff had committed any crime.

36. In doing all the acts and things aforesaid defendants acted willfully and maliciously.

37. After having been arrested, plaintiff, JAYSON PACHECO, was held in custody and restrained of his liberty until he was released.

38. That by reason of the foregoing this plaintiff was unlawfully detained.

39. That by reason of the foregoing this plaintiff was restrained without adequate legal justification.

40. Defendant P.O. CHRISTOPHER REILLY, acting in the scope of his employment as a police officer for the defendant, THE CITY OF NEW YORK, had a legal authority to arrest.

41. Prior to the arrest and/or imprisonment, plaintiff, JAYSON PACHECO, had enjoyed a good reputation in the City of New York, particularly for honesty.

42. That at all times hereinafter mentioned, this plaintiff was conscious of the confinement inflicted upon him and did not consent to the confinement.

43. That at all times hereinafter mentioned, the aforementioned confinement was not privileged.

44. As a result of all the acts of defendants, this plaintiff was greatly humiliated and subjected to mental and bodily distress all to this plaintiff's damage.

45. That defendants violated plaintiff's Constitutional right to be free from the use of excessive force.

46. That defendants violated plaintiff's Constitutional right to be free from false arrest and false imprisonment.

47. That by reason of the foregoing plaintiff, JAYSON PACHECO's civil rights under 42 U.S.C. Section 1983 were violated in that this plaintiff was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by individuals who, under color of a statute or regulation of a State, caused this plaintiff to be so deprived and other and further violations of plaintiff's rights and privileges secured to him under the

Constitutions of the United States and the State of New York.

48. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
PLAINTIFF JAYSON PACHECO ALLEGES:

49. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

50. That by their conduct, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

51. That defendants maliciously commenced criminal proceedings against plaintiff and falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

52. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

53. That all charges were terminated in plaintiff's favor.

54. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
PLAINTIFF JAYSON PACHECO ALLEGES

55. This plaintiff repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs of this complaint, with the same force and effect as if herein fully set forth at length.

56. That on the 30th day of August, 2014, this plaintiff was arrested, confined and/or imprisoned.

57. Because of the aforementioned, this plaintiff was subjected to great indignity

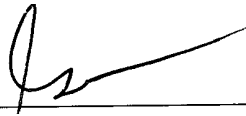
and humiliation, pain and distress of mind and body, was prevented from attending to his usual business, was subjected to procure services of counsel in his defense, and was injured in his good name and reputation in the community, to this plaintiff's damage.

58. That the amount of said damages sustained by the plaintiff as a result of the aforesaid exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

WHEREFORE, plaintiff, JAYSON PACHECO, demands judgment against the defendants in the First Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Second Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Third Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, on the Fourth Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action, and on the Fifth Cause of Action in an amount which exceeds the jurisdiction limits of all lower courts which would otherwise have jurisdiction over this action together with interest, costs, and disbursements to herein.

DATED: New York, New York
March 13, 2015

Yours, etc.

By: 
GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Avenue - Suite 1005
New York, N.Y. 10010
(212) 779-2740

INDIVIDUAL VERIFICATION

STATE OF NEW YORK

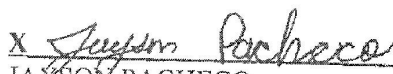
COUNTY OF NEW YORK)ss:

JAYSON PACHECO, being duly sworn, deposes and says:

I am the plaintiff in the within action and have read the foregoing SUMMONS AND VERIFIED COMPLAINT dated March 13, 2015 and know the contents thereof. That the same is true to my knowledge, except as to those matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

Sworn to before me this
13 day of March, 2015


NOTARY PUBLIC

X 
JAYSON PACHECO

GREG GARBER
NOTARY PUBLIC
STATE OF NEW YORK
COUNTY OF NASSAU
NO. 02GA6107639
MY COMM. EXP. 06/09/2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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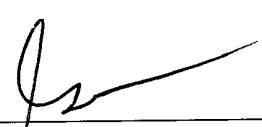
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CERTIFICATION

GREG GARBER, ESQ., an attorney duly admitted to practice law before the Courts of the State of New York, hereby certifies in accordance with 22 NYCRR Part 130-1.1-a of the Rules of the Chief Administrator that to the best of my knowledge, information and belief, which was formed upon personal knowledge of the facts and events that occurred and after a reasonable inquiry under the circumstances, the presentation of the SUMMONS AND VERIFIED COMPLAINT and its contents are not frivolous, as the term is defined in Part 130.

DATED: New York, New York
March 13, 2015

Yours, etc.

By: 

GREG GARBER, ESQ.

Attorney for Plaintiff

60 Madison Avenue - Suite 1005

New York, N.Y. 10010

(212) 779-2740

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GREG GARBER, ESQ.
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